

GOODYEAR TECHNOLOGY CENTER INDIA PRIVATE LIMITED

Purchase Order

Date: 27.05.2026	Purchase Order: 8242390552
Ship to: Goodyear Technology Center, India Private Limited Building 20, 12th floor, Sundew Properties Limited, Raheja Mindspace, Survey 64, Madhapur, Serilingampally, Hyderabad, Ranga Reddy Hyderabad, 500081 GSTIN: 36AALCG9866C1Z6 PAN No: AALCG9866C	Please show the above Order Number on Invoices,all Correspondence, Packing Slips,Packages and Freight bills Delivery Date : 30.11.2026 Our ref. : 0136078602 Your vendor number with us : 622867
Vendor	Mail Invoices to:
NATIONAL AUTOMOTIVE TEST TRACKS Survey No. 64, Sagore Manpur Road Village Madhavapura Gram Panchayat 454774 DHAR India GSTIN: 23AABAN9435G1ZN	Goodyear Technology Center India Pvt. Limited Raheja Mindspace, Building no. 20, 12th Floor Hi-Tech City Road, Vittal Rao Nagar Hyderabad, Telangana 500081 Attn : Accounts Payable Department
Terms of Delivery: EXW Ex works Terms of Payment: Paid in payment cycle 15 days from trigger date	Buyer Name : Sidagam Kalyan Telephone Number: Fax Number :

The Vendor shall raise all objections in respect of the present PurchaseOrder within seven (7) days from receipt of the same. In the absence of any objection,the Purchase Order and the Terms & Conditions contained therein shall be deemed to be accepted by the Vendor. The vendor must not charge GST and should state: 'Supply to SEZ Unit Bond or Letter of Undertaking without payment of Integrated Tax,' clearly indicating their Bond or LUT number on the invoice.

Note to supplier for item 1:

Payment terms - 15 days

Open PO has been created with Lumpsum Value and Billing will be made on actuals.

Item	Material/Service(HSN/SAC)	Order qty	Description	Price per unit
00001	(9987)	1 NO	GTIS NATRAX Validation activities	2,491,800.00 / 1NO
			Item Total	2,491,800.00
	TAX			0
	Delivery Date : 30.11.2026			
	NATRAX Track booking			
	Tata & Mahindra POC			
	AQD validation Straight 25hrs	21,000/hr		525,000
	Friction High Mu Surface 9hrs	19,000/hr		171,000
	Leak testing General road 10hrs	9000/hr		90,000
	Friction low mu tracks 9hrs	21,000/hr		189,000
	Workshop 60 days	9000/day		540,000
	AQD Customer Demo Dry handling /Straight 8 hrs	300000/4hrs		600,000
	Dynamic Platform DLE 5 hrs	20000/hr		100,000
	High Speed Track DLE 5 hrs	25000/hr		125,000
	Handling Track 4 W DLE 5 hrs	150000/hr		75,000
	Lunch Food Coupon 60 days	125		15,000
	Test Loads Sand bags 5 Days	150		15,000
	Weighing Pads 3 days	600		1,800
	Vehicle EV Charging	25 / Unit		45,000
	Total INR			2,491,800
	Total with GST INR			2,940,324

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Purchase Order

Date: 27.05.2026	Purchase Order: 8242390552
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Item	Material/Service(HSN/SAC)	Order qty	Description	Price per unit
	Total USD			30,985

Total net value excl. tax INR 2,491,800.00

FOR GOODYEAR TECHNOLOGY CENTER INDIA PRIVATE LIMITED

- 1. Correspond only with Factory. Dial code Hyderabad: 40; outside India: 91-40.
- 2. INVOICE IN TRIPLICATE MUST BE MAILED DIRECT TO ACCOUNTS PAYABLE DEPARTMENT.
- 3. Goods against Challan / Invoice without purchase order reference will be at vendors risks.
- 4. Mail Challan RR/GR direct to stores/Purchase department, Goodyear Technology Center India Private Limited Hyderabad.
- 5. Material subject to inspection at our works. Please provide inspection report.
- 6. Ensure conformity to purchase order prior to despatch.
- 7.Payment of invoice is subject to providing us proper GST Reg. Document.
- 8."Notwithstanding anything to the contrary stated in clause 21 of the Global Terms and Conditions, the Parties hereby agree that Purchaser will be liable to reimburse to the Seller statutory taxes including but not limited to the Goods and Services Tax, as applicable and notified from time to time on submission of invoices as stipulated in respective legislation. The Seller hereby agrees, confirms and undertakes that it shall at all times comply with all the laws includingbut not limited toe-invoicing of GST/tax return, etc. as may be applicable from time to time. In case, the Purchaser incurs any loss on account of non-compliance of GST/E-Invoice/tax return, etc then, the Purchaser shall forthwith be entitled to recover or set off the same from the Seller#s account, along with interest and Penalty, if any. Purchaser will make the payment to Seller,subject to deduction of TDS as may be applicable under law.#

GOODYEAR TECHNOLOGY CENTER INDIA PRIVATE LIMITED GST NO: 36AALCG9866C1Z6 DATED 23/04/2025
The Terms and conditions attached to purchase order shall constitute a part of this offer to purchase to the same extent as if set out on theface hereof, and acceptance of this order shall be deemed to be acceptance of the Terms and Conditions as well.

Note: Ensure to check detailed guidelines for submitting invoices to Goodyear available at: https://supplier.goodyear.com/docs/resources/asia/invoice_instruction_asia_eng.pdf
For invoice queries, please contact Goodyear Account Payable mailbox

INDIA COUNTRY ADDENDUM TO THE GLOBAL PURCHASE ORDER TERMS AND CONDITIONS

Unless expressly stated otherwise hereunder, all other terms and conditions of the Global Terms and Conditions shall govern the arrangement between the Seller and the Purchaser. In the event of any conflict between the provisions of Global Terms and Conditions and the provisions of this Addendum, the provisions of this Addendum shall prevail.

1. In the event of #termination for cause# under Section 4 of the Global Terms and Conditions, the Seller would be required to comply with its obligations under this PO and any other approved and prevailing PO#s, unless otherwise waived off by Purchaser in writing. Purchaser would be liable to pay for the Goods/Services received from the Seller during the subsistence of this PO.

Incase of termination of the PO for any reasons whatsoever, the Seller shall immediately, but no later than 7 days from termination date, return to the Purchaser,

- a) all Confidential Information and property of Purchaser in tangible form and retain no copies, and
- b) erase or destroy other Confidential Information and property of Purchaser, in each case to the extent requested by Purchaser.

In the event of any loss of or damage to such Confidential Information or property of Purchaser, while in the possession of the Seller, the Seller shall forthwith compensate the Purchaser to the full value thereof.

2. Notwithstanding anything to the contrary stated in Section 9 of the Global Terms and Conditions, if whole or any part of the performance by the Parties of their respective obligations hereunder is prevented and/or delayed by causes, circumstances or events beyond the control of the Parties including without limitations, delays due to floods, fires, accidents, earthquakes, riots, explosions, wars, hostilities, strikes, acts of government, pandemic, epidemic, lockdown, quarantine restrictions, custom barriers, or other causes of like character which are beyond the reasonable control of the Parties (#Force Majeure Events#), then to the extent the Parties are prevented and/or delayed from performing their obligations hereunder by reason thereof despite due diligence and reasonable efforts to do so, the Parties shall be excused from performance hereunder for so long as such Force Majeure Events shall continue, provided the occurrence of a Force Majeure Event shall be communicated immediately to the other Party. In case the Force Majeure continues for more than 60 (sixty) days, either Party has the right to terminate.

In the event Seller becomes aware that any such delay may occur, Seller shall, as an obligation under these Global Purchase Order Terms and Conditions and a condition to the terms of this Section 9:

- (a) provide prompt written notice in reasonable detail to Purchaser (which notice shall contain a plan of remedial measures to recommence supply as quickly as possible in the event of a delay) requesting approval of any such delay;
- (b) to the extent possible, establish adequate reserve supplies of Goods for delivery to Purchaser so that performance of this Purchase Order is not delayed or interrupted; and
- (c) use its best efforts to avoid delay and in the event of delay to recommence as soon as possible. Purchaser will determine whether the interruption falls within the scope of this Section 9 and the duration of any delay, which determinations shall be final.

3. Notwithstanding anything to the contrary stated in Section 20 of the Global Terms and Conditions, the Parties hereby agree that in case Purchaser intends to purchase Goods on delivery basis, the Seller shall be responsible to take in-transit insurance coverage of Goods from Seller#s place to the place designated by Purchaser for delivery in the PO or as communicated in writing. However, in case of delivery of Goods, on ex-works basis, the transit insurance risk would be covered under the standard Purchaser#s insurance policy, as amended from time to time. In such cases, the Seller shall ensure that the Goods to be loaded only in vehicles placed by the #Purchaser approved transporters#, list of which shall be provided by the Purchaser to the Seller from time to time.

Notwithstanding anything to the contrary stated in Section 21 of the Global Terms and Conditions, the Parties hereby agree that Purchaser will be liable to reimburse to the Seller statutory taxes including but not limited to the Goods and Services Tax, as applicable and notified from time to time on submission of invoices as stipulated in respective legislation. The Seller hereby agrees, confirms and undertakes that it shall at all times comply with the laws pertaining to e-invoicing, as may be applicable from time to time. In case, the Purchaser incurs any loss on account of non-compliance of GST/E-Invoice/Return, etc. then, the Purchaser shall forthwith be entitled to recover/debit the same from the Seller#s account with the Purchaser, along with interest and Penalty, if any.. Purchaser will make the payment to Seller, subject to deduction of TDS as may be applicable under law.

4. Notwithstanding anything to the contrary stated in Section 22 of the Global Terms and Conditions, the Seller agrees to keep complete and accurate books and records covering all payments and transactions related to each purchase order at its principal place of business, for a minimum period of 8 (eight) years following the period to which such records relate to (#Audit Period#).

5. The following is inserted in Section 27 in the Global Terms and Conditions:

NOTWITHSTANDING ANYTHING STATED HEREIN, THE PURCHASER#S TOTAL LIABILITY TO SELLER FOR ALL CLAIMS OR SUITS OF ANY KIND, WHETHER BASED UPON CONTRACT, TORT (INCLUDING NEGLIGENCE), WARRANTY, STRICT LIABILITY, OR OTHERWISE, FOR ANY LOSSES, DAMAGES, COSTS OR EXPENSES OF ANY KIND WHATSOEVER ARISING OUT OF, RESULTING FROM, OR RELATED TO THE PERFORMANCE OR BREACH OF THIS PURCHASE ORDER SHALL, UNDER NO CIRCUMSTANCES, EXCEED THE VALUE OF THE SPECIFIC PURCHASE ORDER/ AGREEMENT/ STATEMENT OF WORK, UNLESS STATED OTHERWISE IN SPECIFIC PURCHASE ORDER/ AGREEMENT/ STATEMENT OF WORK.

6. Notwithstanding anything to the contrary stated in the Global Terms and Conditions, the Parties hereby agree that If any dispute or difference arises between any of the Parties hereto during the subsistence of any purchase order or thereafter, in connection with the validity, interpretation, effect, existence implementation, termination or alleged material breach of any provision of such purchase order or regarding any question, including the question as to whether the termination of such purchase order by any Party hereto has been legitimate, the Parties hereto shall endeavor to settle such dispute amicably. The attempt to bring about an amicable settlement is considered to have failed as soon as one of the Parties hereto gives 30 (thirty) days' notice thereof to the other Party in writing, after reasonable attempts which shall continue for not less than 30 (thirty) days.

All disputes, differences or claims arising out of or in connection with such purchase order including, any question regarding its existence, validity, construction, performance, termination or alleged violation which is not resolved under above clause by mutual discussions shall be resolved by binding arbitration.

The seat and venue for such arbitration shall be in New Delhi and all proceedings shall be conducted in the English language. Purchaser and the Seller shall jointly appoint a sole arbitrator mutually acceptable to both the Parties. In the event of failure to agree upon a sole arbitrator within 15 (fifteen) days of the end of the 30 (thirty) days# notice period as mentioned in clause above, the sole arbitrator shall be appointed in accordance with the provisions of the Arbitration and Conciliation Act, 1996 (as amended).

GLOBAL PURCHASE ORDER TERMS AND CONDITIONS

- Definitions. "Purchaser"** means the legal entity placing the order as defined in the purchase order and shall in addition, include The Goodyear Tire & Rubber Company and any parent, subsidiary, sister or affiliated company of Purchaser, and with respect to Seller's obligations to provide indemnification and/or reimbursement shall include the directors, officers, employees, agents, consultants and insurers of each of the foregoing Purchaser entities. **"Seller"** means the person or entity that receives this Purchase Order from, or fills an order from, Purchaser for the sale of Goods. **"Goods"** means the deliverables, materials, supplies, articles, equipment, structures, work and/or services covered by this Purchase Order. **"Purchase Order"** means this purchase order used by Purchaser to place an order for Goods with Seller. **"Change Order"** means a written document issued by Purchaser under Section 3 of these Global Purchase Order Terms and Conditions. **"Notification Costs"** means and includes any and all verifiable costs (including, without limitation, attorneys' fees) incurred by Purchaser in investigating whether notification of individuals is required and the preparation and delivery of any appropriate notices to individuals and the provision of appropriate credit monitoring services. **"Purchaser's Property"** means and includes, but is not limited to, all materials, equipment, tools, dyes, and other property of Purchaser. **"Confidential Information"** means and includes, but is not limited to, any prices, drawings, plans, specifications, blueprints, samples, formulas, processes, data, instructions, software, equipment designs or any other information furnished or made available to Seller by or for Purchaser for, or in connection with, the performance of this Purchase Order, including information in written, oral or visual form. **"Claim Costs"** means costs incurred by Purchaser, or costs that would have been incurred by Purchaser but for Seller's assumption of defense of claims, in respect of employees of Purchaser who allege that they have suffered injury or damage by reason of Seller's release, loss, or disclosure of unencrypted Personally Identifiable Information. **"Personally Identifiable Information"** means any information that alone or in combination with other information relates to a specific, identifiable individual person. By way of illustration and not limitation, Personally Identifiable Information includes individual's names, personal identification numbers such as ID card numbers, Social Security or Social Insurance Numbers, credit card numbers, home telephone numbers, home address, driver's license numbers, account numbers, personal email addresses, and vehicle registration numbers. Specific information that can be associated with Personally Identifiable Information, such as a user ID, shall also constitute Personally Identifiable Information. For example, an individual's age alone is not Personally Identifiable Information, but if such age were capable of being associated with one or more specific, identifiable, individuals then such age would be deemed Personally Identifiable Information. Personally Identifiable Information also includes the fact that an individual has a relationship with Purchaser. **"Anti-Bribery Law"** means any bribery, fraud, kickback or other similar anti-corruption law or regulation of any relevant country including, but not limited to, the US Foreign Corrupt Practices Act of 1977 and the UK Bribery Act of 2010 both as may be amended from time to time.
- Complete Agreement.** This Purchase Order, these Global Purchase Order Terms and Conditions, together with all other documents issued by Goodyear and specifically referenced herein, whether in written or electronic form, including, but not limited to, applicable country addendums (**"Country Addendums"**), the Goodyear Supplier Code of Conduct, the Goodyear Global Supplier Quality Manual (as applicable), the Travel Policy for Suppliers, Contractors and Consultants (as applicable) (all available at <http://supplier.goodyear.com>), all specifications, schedules, exhibits, agreements or other writings which may be attached hereto or provided for herein, or, to the extent issued by Purchaser or set forth in a writing manually executed by the duly authorized representatives of the parties, pursuant to which this Purchase Order has been issued, set forth the complete and final agreement between Purchaser and Seller in respect of the subject matter hereof. No changes, additions, amendments or modifications of, or supplements to, the provisions of this Purchase Order will be valid or binding upon Purchaser unless in writing and signed by an authorized representative of Purchaser. In the event of any inconsistency between the Purchase Order, any of its attachments and/or any other agreement by and between the Parties, the following order of precedence applies: 1. any agreement in writing signed by the Parties, 2. the provisions contained on the face of the Purchase Order, 3. the Country Addendums, 4. the Global Purchase Order Terms and Conditions, and then 5. any other attachment to the Purchase Order. Seller's acceptance or, at the election of Purchaser, Seller's commencement of performance of this Purchase Order shall constitute acceptance by Seller of all of the terms and conditions of this Purchase Order. This Purchase Order is expressly limited to the terms set forth herein. Without limiting the generality of this Section 2, these Global Purchase Order Terms and Conditions will not be modified by any acknowledgement, confirmation or acceptance issued by Seller which are hereby objected to and rejected. Purchaser shall not be bound by any "shrink wrap license", "disclaimers" or "click to approve terms" or conditions contained in any Seller computer system, software or website, and Seller is hereby expressly advised that Purchaser deems any attempted, purported or proposed modification hereto by Seller to be a material modification.
- Termination for Convenience: Changes.** Purchaser may terminate this Purchase Order in whole or in part, for its sole convenience. Upon termination, Seller shall immediately stop performance to the extent required by the termination, but shall continue performance to the extent not terminated. Seller's sole remedy as to the terminated portion of any Purchase Order shall be payment of the applicable order price for the Goods accepted as of the termination date, less amounts previously paid. Without limiting the generality of the foregoing, Seller shall not be entitled to receive damages or compensation for any Goods provided after it receives Purchaser's notice of termination. Purchaser shall be entitled to make changes within the general scope of this Purchase Order by issuance of a Change Order specifying the relevant changes. In the event Purchaser issues a Change Order, Seller will proceed with performance as required by this Purchase Order, as modified by the Change Order, and if it is contemplated that Seller's cost to perform will be affected, Purchaser will, if applicable, make an equitable adjustment of the price.
- Termination for Cause.** Unless Seller's failure to make timely delivery of the Goods is excused in accordance with the provisions of Section 9, Seller's failure to make timely delivery, or Seller's breach of any of the terms and conditions of this Purchase Order, shall constitute sufficient cause for Purchaser, at its option, to terminate this Purchase Order either in whole or in part and, among other things, to charge Seller for any damages or losses Purchaser may sustain as a result of Seller's default. Any failure by Purchaser to exercise this option with respect to any installment shall not constitute a waiver with respect to subsequent installments. In the event Seller becomes insolvent or makes a transfer for the benefit of creditors or if bankruptcy or any other insolvency proceedings are instituted by or against Seller, Purchaser shall have the right to immediately terminate this Purchase Order.
- Pricing; Invoicing; and Payment.** As the price for the Goods, Purchaser will pay Seller the amount set forth in this Purchase Order, or if no price is stated, then the lower of Seller's then prevailing market price, time and material rates, or the price last quoted to Purchaser. All invoices for Goods shipped on this Purchase Order shall be rendered by and be payable to Seller. Purchaser may withhold payment if Seller's invoice is incorrect or does not conform to Purchaser's invoicing instructions. When prepaid transportation charges are for Purchaser's account (which requires Purchaser's request on the face of this Purchase Order), invoice must be supported by prepaid receipted transportation bill. Invoice payment dates will be computed from the date of receipt of the Goods or from the date proper and correct invoices are received by Purchaser in accordance with Purchaser's then current requirements for the content of, and procedures for delivery of, invoices, whichever is later. Payments by Purchaser shall not be deemed evidence of acceptance by Purchaser of the Goods. Unless otherwise specified, all amounts shall be invoiced and paid in the currency of the country in which the Purchaser is located. Payment terms shall be governed by this Purchase Order unless more favorable terms to the Purchaser are indicated on Seller's invoice, in which case Purchaser, in its sole discretion may choose to pay pursuant to the invoice's more favorable terms, but in no event shall any other terms of the invoice take precedence over this Purchase Order.
- Best Price.** In addition to any other warranties or obligations hereunder, Seller warrants that the price for the Goods is equal to or less than the lowest price currently made available by Seller, or at which Goods are sold by Seller, to any customer of Seller for such Goods, and in the event that, at any time before payment for some or all Goods deliverable hereunder is due, Seller makes Goods available or sells Goods any price lower than that reflected on this Purchase Order, Seller will provide prompt written notice to Purchaser, in reasonable detail and indicating the relevant price, and the price for the Goods payable hereunder shall be deemed to have changed to such lower price, effective as of the date of the first such availability from or sale by Seller. In addition, in the event that, at any time before payment for some or all Goods deliverable hereunder is due, Purchaser receives an offer for Goods at a price lower than that reflected hereunder, the price hereunder shall be deemed to have changed to such lower price, effective as of the date of such offer and Purchaser may, without limiting any other right hereunder, cancel the unperformed portion of this Purchase Order.
- Setoffs; Counterclaims; and Withholding.** All claims for monies due or to become due from Purchaser shall be subject to deduction by Purchaser for any setoff or counterclaim

arising out of this or any other of Purchaser's contracts with, or other obligations of, Seller. Purchaser may withhold payment of any amounts due Seller hereunder, or in connection with any other obligation of Purchaser to Seller, pending resolution of any claim asserted against Seller in regard to this Purchase Order or any other obligation of Seller to Purchaser and such amounts will only be paid, without interest, when, without cost to Purchaser, the cause of the withholding has been eliminated.

8. **Shipment and Delivery.** Time is of the essence. Quantities must be exactly as specified in this Purchase Order. Purchaser shall not be obligated to accept untimely, excess or under shipments and/or performance and such shipments and/or the work product associated with such performance in whole or in part may, at Purchaser's option be returned to Seller, or held for disposition at Seller's expense and risk. Seller shall not insure any shipments or declare excess valuation on express shipments for Purchaser's account. Seller will be charged with any costs incurred by Purchaser arising out of Seller's failure to conform and/or comply with Purchaser's instructions. Seller shall ensure that the packaging, labeling and shipping of the Goods complies with all requirements hereof and of applicable laws, rules and regulations. No charge will be allowed for packing, boxing or cartage, unless otherwise set forth on the face of this Purchase Order, but damage to any Goods not packed to insure protection will be charged to Seller. Each package must contain a memorandum showing shipper's name, contents of package and Purchaser's Purchase Order number. Unless otherwise specified on the face of the Purchase Order hereof, shipments shall be made DDP Destination Incoterms 2010; title to Goods passes to the Purchaser upon acceptance and Seller pays all freight and related charges and is responsible for filing loss and damage claims prior to acceptance of delivery by Purchaser. Without limiting the obligations of Seller under Section 9 of these Terms and Conditions, Seller shall notify Purchaser immediately of any delay in delivery or shipment. Seller warrants that for any United States bound shipments, Seller shall provide, where applicable, timely accurate and complete information on the U.S. Importer Security Filing Submission Form available at <http://supplier.goodyear.com> (click Shipping & U.S. Customs Requirements, then click Importer Security Filing (ISF), then click on appropriate Submission Form) that will allow Purchaser to file the Importer Security Filing required by U.S. Customs & Border Protection.

9. **Force Majeure.** Subject to the further requirements of this Section 9, Seller shall not be liable for delay affecting Seller's performance hereunder to the extent such delay or failure is due to unforeseeable causes beyond the control and without the fault or negligence of Seller or any subsupplier or subcontractor of Seller. Examples may include acts of God, fire, strike, or extraordinary act of Government. In the event Seller becomes aware that any such delay may occur, Seller shall, as an obligation under these Global Purchase Order Terms and Conditions and a condition to the terms of this Section 9, (a) provide prompt written notice in reasonable detail to Purchaser (which notice shall contain a plan of remedial measures to recommence supply as quickly as possible in the event of a delay) requesting approval of any such delay, (b) to the extent possible, establish adequate reserve supplies of Goods for delivery to Purchaser so that performance of this Purchase Order is not delayed or interrupted, and (c) use its best efforts to avoid delay and in the event of delay to recommence as soon as possible. Purchaser will determine whether the interruption falls within the scope of this Section 9 and the duration of any delay, which determinations shall be final. Purchaser may also, without limiting any other right or remedy hereunder, terminate this Purchase Order in connection with any such delay or threatened delay.

10. **Materials; Equipment; Designs.** Seller shall be responsible for Purchaser's property while the same is in the possession, control or custody of Seller or any of Seller's officers, employees, representatives, agents or transferees. Seller shall use Purchaser's property at its own risk, shall not transfer or dispose of Purchaser's property, shall be responsible for all loss of or damage to it, shall at its own cost maintain it in the same condition as supplied, ordinary wear and tear excepted, and shall return or otherwise dispose of Purchaser's property in accordance with Purchaser's instructions. Seller shall at all times prominently identify Purchaser's property as belonging to Purchaser, and shall segregate such property from property of Seller or others. Seller shall at all times keep Purchaser's property free and clear of all liens, claims or encumbrances by through or under Seller or any of its officers, employees, representatives, agents or transferees. If the Goods to be manufactured for Purchaser by Seller hereunder are to be made pursuant to Confidential Information furnished by Purchaser, Seller shall return the same to Purchaser immediately upon Purchaser's request, upon completion, termination or cancellation of this Purchase Order. Seller shall not, without the express written consent of Purchaser, use Purchaser's property or Confidential Information in the manufacture of any Goods or material for any party other than Purchaser.

11. **Purchaser's Premises.** To the extent that this Purchase Order calls for work to be performed upon property owned or controlled by Purchaser, it is agreed that: (a) Seller will keep the premises and work free and clear of all liens, and furnish Purchaser proper affidavits, releases and/or waivers; (b) the work will remain at Seller's risk prior to written acceptance by Purchaser and Seller will replace at its own expense all work damaged or destroyed by fire, force or violence of the elements or any other cause whatsoever; and (c) Seller shall be solely responsible for the end result of the work described in this Purchase Order and as such shall maintain daily control over its workers and the means and methods used to accomplish the end result. Seller shall be solely responsible for the employment of workers and shall indemnify, defend and hold Purchaser harmless from any claim, demand, loss, cost, expense or suit, the substance of which is either: (i) the violation or claimed violation of any local, provincial, state or federal law, rule or regulation relating to the safety and employment of workers; or (ii) the failure to comply with any local, provincial, state or federal law, rule or regulation requiring employers to withhold taxes or similar charges from employees' pay; or (iii) the failure to pay unemployment or workers' compensation benefits.

12. **Warranty.** Seller expressly warrants that all Goods will be new unless otherwise specified on the face of this Purchase Order, will conform to all applicable laws, rules and regulations, including all applicable chemical or product laws and regulations globally, including the European Union EC 1907/2006 Registration, Evaluation, and Authorization of Chemicals (REACH) and Canada's Chemical Management Plan, and to the specifications, drawings, samples, labels and other descriptions furnished or specified by Purchaser, or if not so furnished or specified, furnished by Seller (provided that in such event the applicable specifications shall be Seller's specifications in effect at the time of shipment) and will be merchantable, suitable for the purposes intended and free from defects, whether patent or latent, in material, workmanship, design and title. Seller further expressly warrants that all Goods to the extent consisting of services shall be executed in a professional, good and workmanlike manner by qualified, careful and efficient workers in strict conformity with the highest standards of the industry and trade(s). Seller also, without limiting the foregoing warranties, extends and assigns to Purchaser its rights under and the benefits of any standard warranty of Seller applicable to the Goods, and all warranties of any subsupplier or subcontractor as to the Goods or any components thereof. If Purchaser determines that any Goods do not comply with the foregoing warranties, Purchaser may, at its sole option, and in each case at Seller's sole expense: (a) reject such Goods and/or purchase substitute goods or services including expedited transportation; (b) require Seller to repair or correct such Goods as necessary to render them in conformance with the foregoing warranties and consistent with Purchaser's time schedule; (c) return such Goods to the extent not consisting of services (and if applicable return the work product of any services), and, whether or not as to Goods that constitute services, receive a full refund; and/or (d) make any corrections required to cause such Goods to fulfill the foregoing warranties and charge Seller for the costs incurred by Purchaser thereby. Seller shall reimburse Purchaser for all costs, damages and losses, foreseeable or not, incurred by Purchaser in connection with a breach of the foregoing warranties (including transportation, storage, administrative, and other incidental expenses of Purchaser). The remedies set forth herein are cumulative, and shall not preclude any other remedy available to Purchaser at law or in equity.

13. **Non-infringement; Intellectual Property.** Seller warrants that the Goods furnished hereunder, and the manufacture, use, sale and resale thereof, do not and will not infringe, misappropriate, or otherwise violate, directly or indirectly, any patent, copyright, moral right, mask work, trademark, service mark, trade dress, trade name or any other intellectual property or proprietary right of others (#Intellectual Property#). Without limiting the generality of Section (15), in the event that any Claim alleging infringement, misappropriation or other violation of any Intellectual Property right is brought or threatened against Purchaser or any of its agents or vendees on account of any Goods furnished to Purchaser hereunder (other than trademarks that Purchaser may specifically request Seller to use in connection with Goods to be furnished hereunder), Seller will Indemnify Purchaser, its agents and vendees in respect of all Liabilities and/or Expenses related to or incurred in connection with such Claim. If an injunction or restraining order is issued in connection with any such Claim, or such a Claim is made against either party, Seller will, at its expense, obtain for Purchaser either the right to continue to make, use, offer to sell, sell or import the Goods or modify the Goods to make them non-infringing, with no material loss of functionality. Any knowledge or information concerning Seller's products, methods or manufacturing processes that Seller may disclose to Purchaser incident to the Goods or Seller's performance of this Purchase Order shall, unless otherwise specifically agreed in writing, be deemed to have been disclosed as a part of the consideration for this Purchase Order, and Seller agrees not to assert any claim against Purchaser by reason of Purchaser's use or alleged use thereof. Unless otherwise

specified on the face of this Purchase Order, and except as set forth in clauses (b) and (c) of this sentence, (a) Seller transfers to Purchaser all right, title and interest in and to the Goods, including Intellectual Property rights, and (b) notwithstanding the foregoing, each party will continue to own all of its preexisting Intellectual Property, provided that Seller hereby grants to Purchaser a perpetual, irrevocable, royalty free, worldwide, nonexclusive license, including the right to sublicense ("Use License"), covering all preexisting, and, if under applicable Law less than all Intellectual Property rights are conveyed by Clause (a) of this Section (9), other, Intellectual Property rights of Seller and third parties in the Goods to the extent necessary or desirable for Purchaser's use of, and exploitation of its rights in, the Goods and (c) Seller will obtain and transfer to Purchaser a Use License covering all Intellectual Property of any third party incorporated into, required to use or delivered with the Goods to the extent necessary or desirable for Purchaser's use of, and exploitation of its rights in, the Goods and will deliver copies of the same to Purchaser upon request. Seller will provide Purchaser with all assistance reasonably required to perfect the rights granted herein. Seller represents and warrants that it has all necessary rights to grant the licenses contemplated hereby. Seller will fully and promptly disclose to Purchaser any and all Work Product. At any time at the request of Purchaser, Seller will deliver to Purchaser all copies in any medium of any or all information or materials received from Purchaser, and any or all Work Product in the possession of Seller. All Work Product will be deemed #works for hire# to the extent permitted by law, and will be owned solely and exclusively by Purchaser. Seller shall, without further compensation, assign to Purchaser, and does hereby assign to Purchaser, Seller's entire right, title and interest in and to all Work Product, and any other Intellectual Property rights therein, throughout the world. Seller shall obtain a similar written assignment from any person who is employed by or engaged, directly or indirectly, by Seller to perform work on projects under this Purchase Order. Seller shall, upon Purchaser's request, execute any and all affidavits, assignments and/or other documents reasonably deemed necessary or desirable by Purchaser to acknowledge, confirm, perfect, secure or support the conveyance of title in any of the Work Product to Purchaser, or to record the same in any country of the world, or to apply for or secure patent, copyright or other protection in any country of the world, or to claim priority therefore, or to enforce Purchaser's rights therein in any court, arbitral or other proceeding, whether during the performance of services under this Purchase Order or at any time thereafter, and to testify or otherwise assist and cooperate with Purchaser and its agents and attorneys in connection therewith, at Purchaser's expense.

14. **Confidentiality.** Seller shall not, without the express written consent of Purchaser, in any way or manner, make known, divulge or communicate any Confidential Information or any information concerning the Goods specified herein and/or manufactured in accordance with such Confidential Information to any third party except as expressly provided for herein. Seller will limit dissemination of such Confidential Information (i) within its own organization to individuals who duties justify the need to know such information and (ii) to such suppliers of Seller, required in Seller's performance, necessarily requiring such Confidential Information and then only provided that there is a clear understanding by such individuals or agents, as appropriate, of their obligation to maintain the confidential status of such information. Seller will be responsible for any disclosure by any person or entity to whom or to which it makes Confidential Information available. Seller shall not employ any such Confidential Information for its own use nor for any third party other than as designated by Purchaser in writing for any purpose whatsoever except in the performance of this Purchase Order. Seller shall use at least the same degree of care in safeguarding Confidential Information as it uses in safeguarding its own comparable information, but in no event less than a reasonable degree of care. Confidential Information shall not include any information which is generally published, lawfully available to Seller from other sources, or known to Seller prior to the disclosure thereof to Seller by Purchaser. If Seller becomes legally compelled to disclose any Confidential Information, Seller may disclose such Confidential Information to the extent legally required; provided, however that Seller shall first notify Purchaser in writing of such request so that Purchaser may seek a protective order or similar remedy. Upon request by Purchaser, Seller shall promptly (i) return to Purchaser all Confidential Information in tangible form and retain no copies, and (ii) erase or destroy other Confidential Information, in each case to the extent requested by Purchaser. Seller will not in any manner advertise or publish the fact that it has agreed to furnish or has furnished Goods to Purchaser without the prior written consent of Purchaser. In addition to all other remedies available to Purchaser at law or in equity, Purchaser will be entitled to specific performance and injunctive relief as remedies for any breach or threatened breach of this Section, without the necessity of posting bond or proving actual damages. Any knowledge or information concerning Seller's products, methods or manufacturing processes which Seller may disclose to Purchaser incident to the manufacture or purchase of the Goods covered by this Purchase Order shall, unless otherwise specifically agreed to in writing, be deemed to have been disclosed as part of the consideration for this Purchase Order, and Seller agrees not to assert any claim against Purchaser by reason of Purchaser's use or alleged use thereof. Seller also agrees to not disclose to Purchaser or any of its subsidiaries or employees, any information of any type whatsoever which Seller is prohibited contractually or otherwise from disclosing.

15. **Purchaser's Trademarks.** Where this Purchase Order specifies that Goods shall bear Purchaser's trade name, trademark or other of Purchaser's identification, and Seller produces any Goods bearing Purchaser's trade name, trademarks or other of Purchaser's identification in excess of the quantity indicated on the face hereof and Purchaser does not accept such excess, Seller may not use or resell such Goods without the written consent of Purchaser. Seller agrees that the use by Seller or the sale or disposition to third parties of any such excess Goods bearing Purchaser's trade name, trademark or other of Purchaser's identification will result in an infringement of Purchaser's property rights and Seller agrees to pay Purchaser damages figured at three times the "vendor unit price" of any such item used, sold or disposed of in violation hereof. Seller agrees that any returned or rejected Goods bearing Purchaser's trade name, trademark or other of Purchaser's identification will be destroyed or alternatively said trade name, trademark or other of Purchaser's identification will be so completely obliterated as to be unrecognizable as Purchaser's trade name, trademark or other identification before Seller makes any disposition whatsoever of the rejected Goods other than total destruction. Seller further agrees not to advertise or hold out to others that any such rejected Goods are rejected Goods of Purchaser or are second line Goods or any such similar terminology that would reflect that such Goods were connected in any manner with Purchaser.

16. **Data Protection Standards.** Seller shall, and shall cause its vendors, agents, representatives, subcontractors, affiliates and any other party to whom Seller may provide Personally Identifiable Information to, comply with the following Data Protection Standards: (a) store Personally Identifiable Information for no other purpose than and for only so long as necessary in Seller's performance of this Purchase Order; (b) not disclose Personally Identifiable Information to any third party, including, its third party sellers, if any, except to the extent necessary to carry out its obligations under this Purchase Order and for no other purpose without an agreement in writing from the third party to use or disclose such Personally Identifiable Information only to the extent necessary to carry out Seller's obligations under this Agreement and for no other purposes; (c) to the extent Seller distributes communications on behalf of or at the request of Purchaser or receives instructions regarding access or communication preferences, in the event that applicable law or regulation requires Purchaser or Seller to honor preferences relating to such communications, including but not limited to opt-out and opt-in requests, Purchaser and Seller shall cooperate in ensuring compliance with such requirements, including timely notification by Seller of its receipt of relevant preference requests; (d) maintain effective and commercially reasonable information security measures to protect the Personally Identifiable Information from unauthorized disclosure or use, including but not limited to: (i) encrypting the storage and transmission of all Personally Identifiable information over the internet or other public networks; (ii) using and regularly updating anti-virus software or programs; (iii) restricting access to the Personally Identifiable Information on a need-to-know basis; (iv) restricting physical access to the Personally Identifiable Information; (v) conducting periodic audits of the security of its systems; (vi) installing and maintaining firewalls to protect the Personally Identifiable Information from unauthorized access; (vii) when destruction is required, destroying the data containing Personally Identifiable Information in accordance with global data security and privacy laws by employing commercially reasonable and secure methods that render the data unreadable and unrecoverable; (e) provide Purchaser with information regarding Seller's own data management and security standards upon the reasonable request of Purchaser; (f) comply with reasonable changes to these Data Protection Standards where requested by Purchaser and consistent with material changes in standard industry practice and subject to applicable change control processes.

17. **Data Remediation.** Seller shall, and shall cause its vendors, agents, representatives, subcontractors, affiliates to whom Seller may provide the Personally Identifiable Information to, provide notice to Purchaser within twenty-four (24) hours of the discovery of any breach in the security of either encrypted or unencrypted Personally Identifiable Information, whether that failure or breach is suffered by the Seller or a third party. Seller shall, and shall cause its vendors, agents, representatives, subcontractors, affiliates to whom Seller may provide the Personally Identifiable Information to, cooperate with Purchaser to rectify any issues that may result, including providing (or providing access to) all information relevant to such breach or necessary to verify the ability of the party responsible for the breach to prevent future data breaches in a manner consistent with this Agreement. Seller shall reimburse Purchaser for Notification Costs and Claim Costs arising from a breach in the security of unencrypted Personally Identifiable Information. The obligations set forth in this Section will survive completion, termination or cancellation of this Purchase Order.

18. **Publicity.** Seller shall not refer to this Purchase Order or reference Purchaser directly or indirectly in its advertising or promotional materials without the prior express written consent of Purchaser

on each occasion.

19. **Indemnification.** To the extent Seller's agents, employees or subcontractors enter upon premises occupied by or under the control of Purchaser or any of its customers or suppliers in the course of the performance of this Purchase Order, Seller will take reasonable steps to prevent any injury to persons or property arising out of acts or omissions of such agents, employees or subcontractors. Except to the extent that any such injury or damage is due solely and directly to Purchaser's gross negligence or willful misconduct, Seller shall indemnify, defend (at Purchaser's option) and hold Purchaser harmless against any and all liens, claims (including those of the parties, their agents and employees), liability, damage or injury of any kind or nature (including death) to all persons whether employees or otherwise and/or to property, and any and all losses, fines, judgments, penalties, expenses (including attorneys' fees, expert fees and other legal expenses and amounts paid in settlement), whether or not related to any third party claim, directly or indirectly caused by, and/or arising out of or in connection with, in each case in whole or in part, the Goods or Seller's actual or alleged breach of its obligations or warranties hereunder, the activities of Seller pursuant to, or in connection with this Purchase Order, including any action or omission of Purchaser or those acting on Purchaser's behalf, or any defect in, or condition of the premises where the work is performed, or any materials furnished by or on behalf of Purchaser. Seller's obligation hereunder shall not be limited to the extent of any insurance available to or provided by Seller.

20. **Insurance.** Seller will obtain and maintain in effect, at its sole cost and expense, the following insurance policies and provisions which shall include all subcontractors, employees or anyone who performs work on behalf of Seller, as insureds under its policies: (a) commercial general liability insurance including products liability, completed operations and contractual liability coverage with respect to the indemnity provisions of these Terms and Conditions with limits that are at least the equivalent of a combined bodily injury and property damage single limit of \$3,000,000 per occurrence (policy shall be written without an insured vs. insured exclusion or any other exclusion that prevents coverage of a claim by one insured against another); (b) automobile liability insurance coverage applicable to "Any Auto" with limits that are at least the equivalent of a combined bodily injury and property damage single limit of \$3,000,000 per occurrence; (c) statutory workers' compensation coverage on its employees including employers' liability insurance with limits of at least \$1,000,000 or such higher amount as required by law. Seller shall have Purchaser named as an additional insured on the liability policies required above. All of the above policies shall include a waiver of subrogation as respects Purchaser stating that Seller, on behalf of its insurers, agrees to waive any right of subrogation that such insurers may have against Purchaser arising out of Purchaser's purchase of goods and/or services from Seller under this Purchase Order. Seller shall furnish Purchaser with certificates of insurance including a provision that Purchaser will receive thirty (30) days prior written notice of any nonrenewal, cancellation of material change of the coverage. All deductibles on the above policies shall be no more than Fifty Thousand Dollars (\$50,000) and shall be borne by Seller. In the event Seller fails to comply with the foregoing insurance requirements, Purchaser shall be entitled, but not obligated, to procure such insurance and any sums expended by Purchaser in procuring such insurance shall be paid by Seller to Purchaser upon demand. The policies listed above shall be primary to and shall not contribute with any insurance carried by Purchaser. Purchaser shall have the right to approve settlements and to be paid proceeds directly as their interests may appear. All of the above policies shall be written on an occurrence form. The insurance coverages required above shall be issued by an insurance company(ies) acceptable to Purchaser with a minimum A.M. Best rating of A- minus (or any equivalent rating from another recognized rating agency and authorized to do insurance business wherever the Goods purchased under this Purchase Order are utilized. The above insurance shall be maintained by Seller for one (1) additional year after termination of this Purchase Order. Seller will provide Purchaser with current certificates of insurance reflecting the required coverages and insuring provisions.

21. **Taxes.** With respect to any purchase of Goods under this Purchase Order, if any federal, state or local tax, excluding any tax levied on Seller's income, is either (i) required by applicable law to be collected from Seller or (ii) imposed in connection with the sale of Goods hereunder (whether or not collection is required by law) and Seller requests reimbursement for such tax, (the taxes described in clauses (i) and (ii), including, without limitation, state or local gross receipts taxes that are similar in nature to sales taxes, or state or local waste tire taxes/fees, and federal excise taxes, collectively "Taxes", or individually "Tax"), then (y) Seller will bill such Tax as a separately stated item and (z) Purchaser will timely remit such Tax to Seller. Purchaser and Seller agree upon the following process whereby, if applicable, Purchaser's eligibility for Tax exemption under applicable law may be identified in Seller's system so that Purchaser is identified therein as being a qualified Tax exempt entity and as such make its purchases net of the applicable Tax exemptions. Purchaser shall be responsible for providing copies of any necessary certifications and other relevant information to document its Tax-exempt status and providing the same to Seller. Once such certifications have (and any necessary other information has) been provided to Seller in respect of Purchaser, and such certifications and information reasonably conform to Seller's billing policies in respect of Tax exemptions (which require, without limitation, that such certificates are properly issued in the name of the relevant entity) and applicable law, then (i) Seller shall submit transactions involving Purchaser, in the jurisdiction to which the exemption relates and during the effective period of the certificate or other evidence of Tax-exempt qualification, to Purchaser for payment net of the applicable exempt Taxes and (ii) Purchaser shall pay Seller for each such transaction net of the applicable Tax amounts. Seller and Purchaser agree to cooperate fully with each other to provide such information necessary for Seller or Purchaser to calculate and obtain applicable refunds for such Taxes billed by Seller for time periods before the evidence of Tax exemption provided above was presented to and approved by Seller. Seller may access copies of Purchaser's Tax exemption documentation at <http://supplier.goodyear.com> which shall constitute Purchaser's compliance with this Section 21.

22. **Record Retention; Audit and Access Rights.** Seller shall maintain complete books and records concerning amounts charged to Purchaser for Goods and concerning materials and supplies used by Seller, which books and records shall be available for audit by Purchaser for a period of six (6) years from the date of sale to Purchaser. Furthermore, Purchaser will have the right to audit Seller to verify its performance hereunder. Audits shall be made upon reasonable notice to Seller and shall be conducted in a manner as to not interfere unreasonably with Seller's normal business activities. Unless such audit is required by governmental authority, and except as provided below, any audit conducted pursuant to this paragraph shall be at the expense of Purchaser. If such audit indicates that Seller overcharged Purchaser by more than 2% or if such audit shows that the materials and supplies utilized did not conform to Purchaser's specifications, then Seller shall bear the costs of such audit. Upon Purchaser's request, Seller shall provide Purchaser with specific information, in such detail as Purchaser may request, as to the location and method of manufacturing or assembly of Goods. Seller shall provide Purchaser with prior written notice of any change in the location of manufacturing or assembly of Goods, and Seller shall be fully responsible for all costs and/or delays resulting from such changes. Without advance notice but during regular business hours, Purchaser, its designated representatives and any independent inspectors approved by Purchaser, may inspect any facilities at which any Goods or any components for Goods are being manufactured or assembled (including any facilities of Seller, its affiliates, subsidiaries, subcontractors and suppliers) and any and all Goods at any stage of manufacture, assembly or delivery (including at the delivery point specified in this Purchase Order). Purchaser may require Seller to have Goods inspected prior to its shipment to the United States. Such inspection shall be performed at Seller's sole expense and by an independent inspector approved by Purchaser. Any inspection, documentation thereof and any corrective action taken by Seller with respect to any Goods shall not be deemed an acceptance of such Goods, or a waiver of any nonconformities or defects in such Goods and shall not excuse any failure by Seller to deliver Goods in accordance with these Terms and Conditions.

23. **Assignment; Delegation and Transfer.** Seller shall not assign, delegate or otherwise transfer, in whole or in part, any rights, duties, claims or obligations hereunder, whether voluntary or by operation of law, including by subcontracting, without Purchaser's prior written consent. Any such attempted assignment, delegation or other transfer without Purchaser's prior written consent shall be null and void and Purchaser shall, without limiting any other right, have the right to cancel Purchaser's obligations hereunder.

24. **Anti-Bribery and Corruption.** Seller shall not violate any applicable Anti-Bribery Law. Seller has and must at all time implement adequate procedures designed to prevent Seller, or any entity or person who performs services for or on behalf of Seller in any capacity and including, without limitation, employees, agents, subsidiaries, representatives and subcontractors (an "Associated Person") from engaging in any activity which would constitute an offence under any applicable Anti-Bribery Law. Seller represents that, in connection with this Purchase Order, no improper financial or other advantage has been, will be or is agreed to be given to any person by or on behalf of Seller or its Associated Persons. Breach of this Section 24 or of any applicable Anti-Bribery Law is a material breach of this Purchase Order and without prejudice to any other right, relief or remedy, entitles Purchaser to terminate the Purchase Order immediately.

25. **Antidumping.** Seller represents and warrants that all sales to Purchaser shall be made at no less than fair value under the United States antidumping law and that no government has provided a countervailable subsidy for Goods actionable under U.S. law. Seller shall indemnify Purchaser for (i) all antidumping and/or countervailing duties imposed on all Goods sold prior to the date of publication of the International Trade Administration's preliminary determination of sales at less than fair value or prior to the date of publication of the existence of countervailable subsidies and exported before the date of publication of the International Trade Administration's final determination of sales at less than fair value or the existence of countervailable subsidies and (ii) any expenses (including attorneys' fees) and administrative costs incurred by Purchaser in its participation in any United States antidumping or countervailable duty proceeding involving Goods.

26. **Compliance with Legal Requirements.** Seller warrants that in its performance hereunder, it will comply with all applicable local, provincial, state, federal and foreign laws, rules and regulations, administrative and executive orders, and pertinent government procurement regulations and participate in E-verify, if applicable. In addition, Seller shall, at its expense, obtain and maintain all permits and licenses as necessary, and Seller shall give notices and comply with all orders of any public authority bearing on Seller's performance under this Purchase Order. Seller and Seller's subcontractors shall comply with the Occupational Safety and Health Administration's hazard communication standard (CFR 1910.1200) and "Right to Know Laws", if applicable, and any Purchaser contractor safety program then in effect. Seller must comply with all hazardous material labeling requirements. Seller shall provide and update Material Safety Data Sheets ("MSDS") for hazardous substances/materials used, furnished, delivered or brought on site by Seller or Seller's subcontractors, including any such materials to the extent used in or comprised by the Goods. Seller shall comply with all local, state, federal and provincial laws and regulations concerning protection of human health, welfare or the environment and shall prevent the unlawful release of hazardous substances/materials into the environment. Seller shall investigate and remediate at Seller's costs any release or threat of release of any hazardous substances/materials into the environment, whether on or off site, and arising out of or related to any use, furnishing or delivery of hazardous substances/materials by the materials or products by Seller. Seller shall meet all supplier quality and regulatory requirements of or applicable to Purchaser as revised from time to time, and, without limiting the foregoing, shall comply with the requirements of any accredited professional society that Seller is registered with, such as an accredited ISO 9000 Registrar, along with all applicable IATF standards, including, but not limited to, Clause 8.4.2.2 of IATF 16949:2016 along with Purchaser's requirements as outlined in the Goodyear Global Supplier Quality Manual and the Goodyear Supplier Code of Conduct.

27. **Miscellaneous Provisions.** All rights and remedies of Purchaser specifically set forth in this Purchase Order shall be cumulative and in addition to any other or further rights and remedies provided in law or equity. Under no circumstances shall Purchaser, its subsidiaries and affiliates be liable for any anticipated profits or for incidental, consequential, special, exemplary, or punitive damages in connection with this Purchase Order or the sale or use of the Goods. Failure of Purchaser to insist upon strict performance of any term or condition of this Purchase Order shall not be deemed to be a waiver of Purchaser's rights and remedies. No waiver by Purchaser of any default by Seller of any term or condition of this Purchase Order shall be effective unless in writing and signed by an authorized representative of Purchaser, nor shall such waiver constitute a waiver of any default or of the same default on a future occasion. Seller's warranties, indemnification obligations, and all other provisions that may be reasonably interpreted or construed as surviving completion, cancellation or termination of this Purchase Order will survive. The parties expressly exclude the applicability of the United Nations Convention on Contracts for the International Sale of Goods.

28. This Purchase Order, and performance hereunder, shall be governed by the laws of the state in which the Purchaser is incorporated without regard to its conflict of law principles and any action or proceeding arising out of, or related to, this Purchase Order or the Goods may be brought only in an appropriate state or federal court in the state of incorporation of the Purchaser.

29. Where a local language translation of the Global Purchase Order Terms and Conditions is attached to the Purchase Order in addition to the English language version of the Global Purchase Order Terms and Conditions, the English language version of the Global Purchase Order Terms and Conditions will take precedence over the local language translation of the Global Purchase Order Terms and Conditions, if permissible by local law applicable to the Purchase Order.

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